

**2008**

**M B A**

**2nd Semester Examination**

**CORPORATE GOVERNANCE AND LEGISLATION**

**PAPER—207**

**Full Marks : 100**

**Time : 3 Hours**

*The figures in the right-hand margin indicate full marks.*

*Candidates are required to give their answers in their own words as far as practicable.*

*Illustrate the answers wherever necessary.*

**Write the answers to Questions of each Half in separate books.**

**(First Half)**

**(Marks : 50)**

1. Answer any four questions : 5×4
- (a) Who can be the managing director of a company?
  - (b) 'Shareholders' and 'members' of a company mean the one and the same thing. — Discuss.
  - (c) State the cases when directors are appointed by the Board of Directors of a company.
  - (d) Discuss the procedure of resignation of a director of a company. Is there any difference between resignation of an ordinary director and resignation of a managing director?
  - (e) What do you mean by 'Non-Executive Director'? State the rationale of having them in the Board of Directors of a company.
  - (f) Corporate Governance mechanisms are to be followed so as to avoid penal actions against the company — comment.

2. Answer any two questions : 10×2

- (a) Discuss the basic features and development potential of 'managing Agency' model of corporate governance in India and its concerned surroundings.
- (b) Discuss the provisions relating to 'Removal of Directors' by the shareholders of a company.
- (c) Write a note on 'Remuneration of Directors' as per the provisions of Companies Act, 1956.

**[ Internal Assessment : 10 Marks ]**

**( Second Half )**

**(Marks : 50)**

3. Answer any four questions : 5×4

Write short notes on the following topics :

- (a) State briefly the recommendations of Cadbury Committee.
- (b) What do you mean by Related party transactions ?
- (c) What is an Appellate Body ?
- (d) Write a note on Nominee Director.
- (e) Discuss Whistle Blower Policy.
- (f) What is indicated by "Code of Conduct" referred by N. Murthy Committee ?

4. Answer any two questions : 10×2

- (a) State the recommendations of Narayana Murthy Committee in respect of Corporate governance.
- (b) What are the recommendations of King Committee ? Give your views on the usefulness of these recommendations. 8+2
- (c) What are the recommendations of K. M. Birla Committee ? 10

**[ Internal Assessment : 10 Marks ]**